

The examination is being carried out on the **following application documents**

Description, Pages

1-51 filed with entry into the regional phase before the EPO

Claims, Numbers

1-3 received on 28-10-2019 with letter of 28-10-2019

Drawings, Sheets

57/18-74/18 filed with entry into the regional phase before the EPO

Drawings, Figures

1-21 filed with entry into the regional phase before the EPO

Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 JP 2013 245170 A (NIPPON MENA ADE KESHOHIN KK) 9 December 2013 (2013-12-09)

D2 KR 101 143 255 B1 (LEE HAE RYUN [KR]; HEALTH LOVE CO LTD [KR]) 3 May 2012 (2012-05-03)

D3 KR 2010 0031839 A (AMOREPACIFIC CORP [KR]) 25 March 2010 (2010-03-25)

D4 EP 3 246 040 A1 (HLSCIENCE CO LTD [KR]; LEE HAE-YEON [KR]) 22 November 2017 (2017-11-22)

D5 WO 2006/127832 A2 (POM WONDERFUL LLC [US]; BATES BYRON [US]; FRITZ ERICH A [US]; HENIG YA) 30 November 2006 (2006-11-30)

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Amendments - Art. 123(2) EPC

The amendments fulfill the requirements of art. 123(2) EPC.

2 Novelty - Art. 54 EPC

- 2.1 Claim 1 is directed to the **"cosmetic" use of a composition** comprising a **pomegranate concentrate** as an active ingredient for promotion of skin withening and hyaluronic acid synthesis. I.e to an effect of the composition, wherein the pomegranate concentrate comprises **1.8-3mg/g of ellagic acid and 8-15mg/g of polyphenol**,...
- 2.2 However JP2013245170 (D1) discloses that **pomegranate juice** or its lactobacillus fermentation product has **an excellent hyaluronic acid synthesis promoting effect**, particularly, the lactobacillus fermentation product is preferable, and, as the lactobacillus to be used, Lactobacillus plantarum is preferable. This hyaluronic acid synthesis promoter increases the synthesis ability of hyaluronic acid in vivo, thus can be used for the prevention and/or treatment of the ageing of a skin, skin diseases such as atopic dermatitis, psoriasis, ichthyosis and arthritis such as rheumatisms, and can be blended into medicine, quasi drugs, cosmetics, or foods.
- 2.3 The effect of the pomegranate concentrate is inherent to the pomegranate juice.
- 2.4 Furthermore, even if D1 does not explicitly disclose the separate constituents of the composition, the pomegranate concentrate may comprise 1.8-3mg/g of ellagic acid and 8-15mg/g of polyphenol.
- 2.5 In addition in document D5 (WO2006/127832) discloses processes for producing an extract containing phytochemicals from pomegranates are disclosed. The processes generally comprise providing pomegranate solids, such as the pericarp, inner membrane and seeds; creating a mixture comprising the pomegranate solids in an aqueous solution; adding enzymes to the mixture in an amount sufficient to at least partially degrade the pomegranate solids; heating the mixture to a temperature that permits the maximum rate of catalysis of the enzyme; maintaining the temperature of the heated mixture for a time sufficient to allow at least partial degradation of the pomegranate solids; and removing residual insoluble solid materials from the mixture. Compositions containing the extract may be used as a food product, beverage, pharmaceutical preparations, nutritional supplements, vitamin supplements, food additives, and food supplements. The composition may also be used for preventing or ameliorating disease conditions by administering an effective amount of the composition to a subject in need thereof. In particular Table 1 shows a side-by-side comparison of the concentration of the polyphenols

punicalagins, punicalin, ellagic acid glycosides, and ellagic acid in the pomegranate extract and the pomegranate juice. Se D5, Table 1: Ellagic Acid 19.65 0.33 Glycosides and Ellagic Acid 18 0.74

- 2.6 The burden of proof lies with the applicant, that the **pomegranate concentrate of the present application does not comprise 1.8-3mg/g of ellagic acid and 8-15mg/g of polyphenol**,

This teaching of D1 anticipates the "**cosmetic use of a composition** comprising a **pomegranate concentrate** as an active ingredient for promotion of skin withening and hyaluronic acid synthesis" i.e. the novelty of claims 1, 2 and 3.

- 2.7 Furthermore, **third party observations** has been filed on 18.07.2018.

In the Traditional Knowledge Digital Library (TKDL), there are several references where Punica granatum Linn has been used as a complexion enhancer, Anti wrinkle, immuno potentiators/Anti ageing/ Anti oxidant through oral administration in the Indian Systems of Medicine since long.

Hence, the invention as claimed in the above referred patent application is not novel nor inventive over the teaching of the documents filed with the third party observations of 18.07.2018.

3 Inventive Step - Art. 56 EPC

The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of claims 1 to 3 does not involve an inventive step within the meaning of Article 56 EPC.

D1 does not disclose explicitly that the pomegranate concentrate comprises 1.8-3 mg/g of ellagic acid and/or 8-15mg/g of polyphenol.

The pomegranate concentrate is prepared through a process of treating a pomegranate fruit with a starch-degrading enzyme and then concentrating by heating, has not been disclosed in D1

Furthermore, a process wherein the treatment with the starch-degrading enzyme is performed at 40-65 °C within 60 minutes and wherein the concentrating by heating is performed by performing heating concentration at

70-100 °C and 400-850 mbar for 2 or more times and then performing heating concentration at 40-80 °C and 100-350 mbar for 1 or more time, has not been disclosed in D1 either.

However, the above characteristics have been disclosed in **D5**. The compositions of **D5** would be suitable for the purpose sought in D1. The man skilled in the art would be able to combine the teaching of D1 and D2 in order to promote hyaluronic acid synthesis. Therefore, in the absence of any enhanced or synergistic effect or surprising effect, the subject-matter of claims 1 to 3 would be obvious to the skilled man.

4 **Miscellaneous**

4.1 The applicant is invited to file a new (independent) claim which takes account of the above comments.

In order to comply with the requirements of Rule 137(4) EPC, the applicant should clearly identify the amendments made, irrespective of whether they concern amendments by addition, replacement or deletion, and indicate the passages of the application as filed on which these amendments are based (see Guidelines E-II, 1).

If the applicant considers it appropriate, these indications could be submitted in handwritten form on a copy of the relevant parts of the application as filed.

When filing amended claims the applicant should at the same time bring the description into conformity with the amended claims. Care should be taken during revision, especially of the introductory portion and of any statements of problem or advantage, not to add subject-matter which extends beyond the content of the application as originally filed (Article 123(2) EPC).